

LIBERTARIANISM

ABCs of politics – Session 3

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INTRODUCTION

The contemporaneity of libertarianism

Political leaders: Milei, Bukele...

Tech-industry: Peter Thiel, Musk...

Cryptocurrencies communities

An impossible definition?

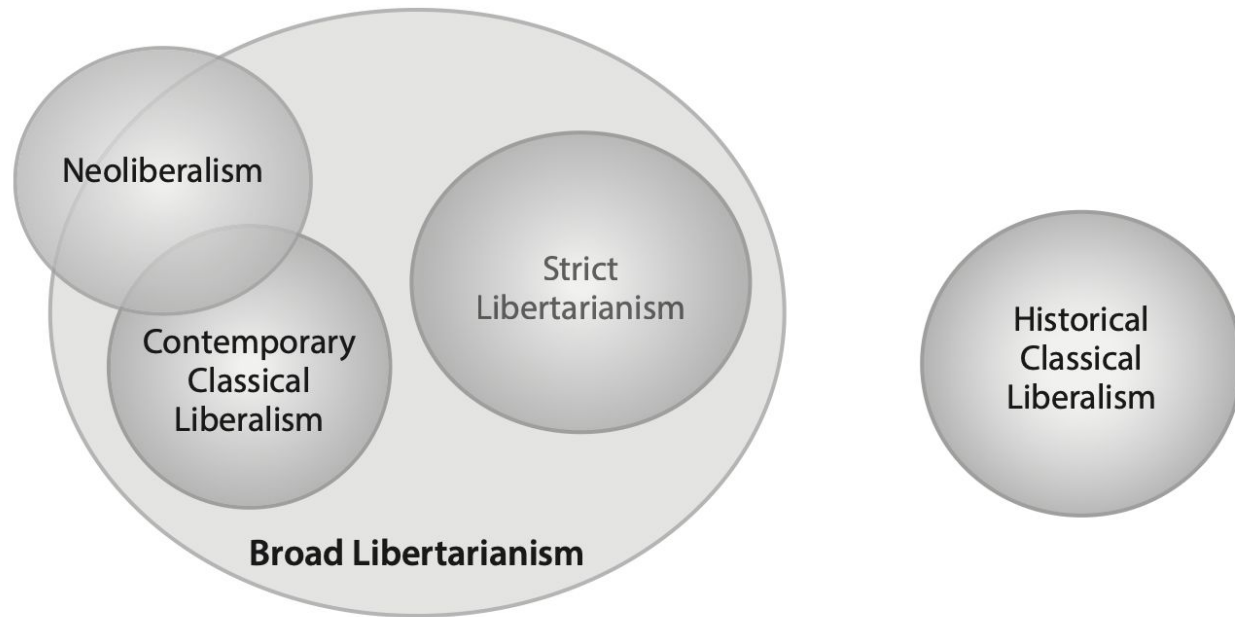
Philosophical conception: minimal State (Nozick)

Economic: defence of free markets and private property (Hayek, Mises, Friedman)

Common sense: moral defence of egoism (Ayn Rand)



LIBERTARIANISM AND LIBERALISM



- Philosophical differences: libertarianism more concerned about the *liberty of the will*
- Political differences: not only the excesses of the State but the State *as such*
- Historical differences: classical liberalism (18th) emerged against absolutism; libertarianism (19th) against socialist ideas and slavery

SESSION OUTLINE

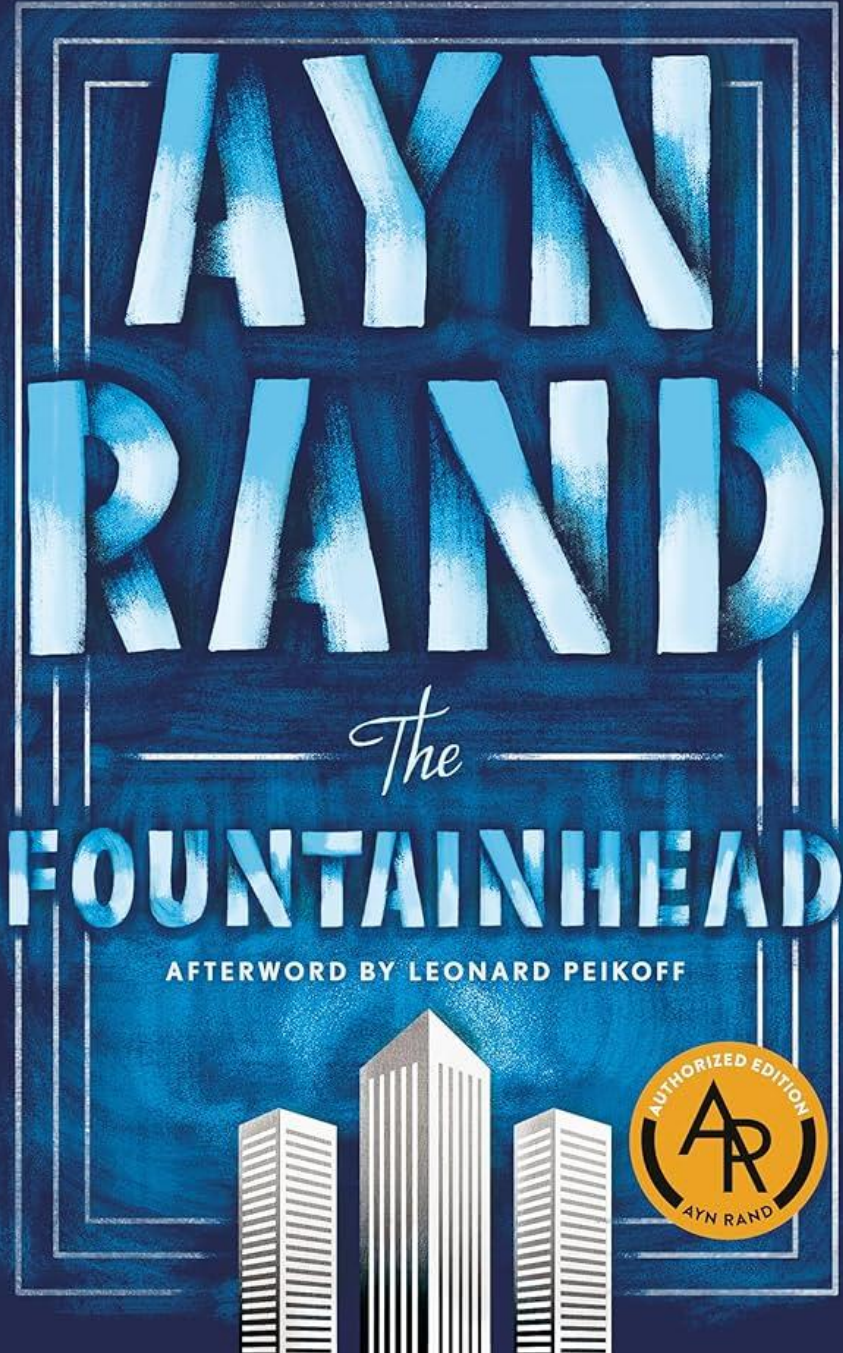
1. History of libertarianism
2. Main features of libertarianism
3. Nozick and the political theory of libertarianism

FIRST WAVE OF LIBERTARIANISM

- Middle of the 19th century
 - First factor: Industrial Revolution (mass urbanization, rise of wage labor, concentration of capital, and so on.)
 - Second factor: Rise of socialism
- In Britain: Herbert Spencer
- In France: Jean-Baptiste Say
- In the US: abolitionist movement



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SECOND WAVE AND THIRD WAVES OF LIBERTARIANISM

- Second wave: "Cold War" libertarianism (Rand, Hayek, Mises...) □ fight against communism and Welfare State
- Third wave: intellectual difficulty
 - Paleo-libertarianism (Rockwell):
 - Leftist version: critique of capitalism

MAIN FEATURES OF LIBERTARIANISM

- Private property
 - Personal objects, productive capital and “public goods”
 - Moral significance of private property □ inviolable, absolute and foundational (self-ownership)
- Scepticism of authority
 - Practical reasons: bureaucracy is not wise enough
 - Moral reasons: no formal consent to Stat’s sovereignty
- Free markets
 - Related to self-ownership
 - No moral limit to exchange (sexual services, organs, drugs...)

MAIN FEATURES OF LIBERTARIANISM

- Market as spontaneous order
 - Consensual rather than coerced
 - Polycentric rather than direct
 - Emergent rather than consciously designed
- Individualism
 - Normative individualism □ Kantian principle (people as ends-in-themselves)
 - Ethical individualism □ Self-interest as a moral value (Rand)
- Negative liberty
 - Maximalist conception (Spencer)
 - Property-based conception

ANARCHY, STATE, AND UTOPIA

NOZICK AND THE POLITICAL
THEORY OF LIBERTARIANISM

- Robert Nozick (1938-2002) publishes *Anarchy, State and Utopia* in 1974
- Elements of context:
 - Rawlsian theory of justice □ ASU = libertarian response to Rawls
 - Anarcho-individualist movement □ State is immoral as *such*
- Definition of the State:
 - Monopoly of violence (*de facto* or *de jure*)
 - Redistributive dimension (taxes and universal protection)
- Conceptual distinction:
 - Minimal State (classical liberal State)
 - Ultraminimal State: State's sovereignty restricted to those who formally contract with the State
- Two main thesis:
 - Libertarian conception of the State (against anarcho-individualism)
 - Libertarian conception of justice (against Rawls' theory of justice)

THE DEFENCE OF THE STATE

- Methodology:
 - Heuristic tool of the State of Nature
 - Abandonment of the social contract □ emergence of the State = evolutionary process (invisible hand)
- Two problems:
 - How can the State of Nature lead to the emergence of an Ultraminimal State?
 - How can this Ultraminimal State become a morally legitim Minimal State?

FROM THE STATE OF NATURE TO THE ULTRAMINIMAL STATE

- Starting point = anarchy in the State of Nature □ how can we explain the emergence of the State?
- Step 1: Different possibilities to solve conflicts
 - Self-defence
 - Protection Associations: 1) Mutual Protection 2) Professional associations
- Step 2: **concentration**
 - Services provided by PA are rival □ success of a PA relies on the failure of the others
 - Invisible hand leads to the emergence of PA' monopolies
- At this stage, it is still *not* a State !
 - PA don't claim for a monopoly of violence
 - They don't protect everybody

FROM ULTRAMINIMAL STATE TO MINIMAL STATE

- Step 3: Monopoly *de facto* (and *de jure*)
 - Market power of the dominant agency □ judges conflicts between its members and between its members and private individuals (trust in its procedures)
 - First element of the State □ monopoly of violence (but only ultraminimal)
- Step 4: "Universal" protection (*minimal State*)
 - Need to compensate private individuals for the use of agency's procedures
 - Therefore, offers protection for independents when they have a conflict with a member of the agency □ form of "redistribution" (members pay for protection of non-members)
- Question = morality of this "redistribution"? Nozick's argument = not a redistribution but a *compensation*

A CRITIQUE OF RAWLSIAN THEORY OF JUSTICE

- Three main problems with Rawlsian conception:
 - Consequentialist approach □ problem are not consequences but *principles*
 - No good explanation to justify social cooperation
 - Continuous intervention of the State:

“no distributional patterned principle of justice can be continuously realized with continuous interference with people’s lives [...] To maintain a pattern one must either continually interfere to stop people from transferring resources as they wish to, or continually interfere to take from some persons resources that others for some reason chose to transfer to them” (ASU)

AN ALTERNATIVE CONCEPTION OF JUSTICE

- Nozick's theory = based on three principles:
 1. "A person who acquires a holding in accordance with the principle of justice in acquisition is entitled to that holding" (Locke's theory of acquisition)
 2. "A person who acquires a holding in accordance with the principle of justice in transfer, from someone else entitled to the holding, is entitled to the holding"
 3. "No one is entitled to a holding except by (repeated) applications of 1 and 2"
- Decision difference:
 - For Rawls, distribution is just if it fits the structure of just distribution □ structural conception of justice
 - For Nozick, distribution is just if it arises from another distribution by legitimate means □ historical conception of justice